

CNR No.HRGR01-007022-2019	CIS No. COMA-05-2019
SFIO Vs. Adarsh Builders and others.	

Present : Shri Karan Sinha, counsel for the applicant-accused
Surender Singh.

File taken up today on the application moved on behalf of the applicant-accused Surender Singh for furnishing bail bond. Along with application, copy of order dated 29.10.2021 passed by the Hon'ble apex Court in SLP(Crl.) No. 6847 of 2021 is also attached.

The aforesaid order of Hon'ble apex Court has been confirmed by the Ahlmad of this Court through online.

Vide order dated 29.10.2021 passed by the Hon'ble apex Court in SLP(Crl.) No. 6847 of 2021, Hon'ble apex Court has granted interim bail to the applicant-accused Surender Singh while making following observations:

“As regards the interim relief, prima facie, we find that the loan was taken by the Company which before (seven years earlier) the petitioner became the Director of the Company. Indeed, the petitioner was an authorized signatory to the document executed on 15.12.2017.

Prima facie, we find force in the submission made on behalf of the petitioner that if the co-accused have been granted interim bail by this Court, the same relief be given to the petitioner. More so because, the petitioner is in custody from the year 2019. And the Court could set down the matter for hearing immediately after Diwali holidays.

Accordingly, in the peculiar facts of the present case, we direct grant of interim bail to the petitioner in connection with criminal Complaint No. COMA/05/2019 on conditions as may be specified by the Trial Court/Sessions Judge-cum-Special Judge (under the Companies Act, 2013), Gurugram.

The condition amongst others must include the requirement of depositing the passport of the petitioner in the Registry of this Court as a condition precedent for release of the petitioner.

List this matter along with Special Leave Petition (Crl.) Nos. 618/2020, 6456/2020 and 140/2020 and remaining batch of cases [SLP(Crl.) No.4634/2014 and connected cases] on 10.11.2021.”

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The above contents of order of Hon'ble apex Court indicate that Hon'ble apex Court has granted interim bail to accused Surender Singh without specifying any time therein. It means, he is expected to be on interim bail till any further order is received from Hon'ble apex Court in this regard. Hence, in the given circumstances, applicant-accused Surender Singh is admitted to interim bail on his furnishing personal bond in the sum of ₹1,00,000/- with one surety in the like amount to the satisfaction of this Court and subject to the following conditions in its letter and spirit:

1. The applicant/accused will not go abroad except prior permission of the Court and will provide his contact number by the next date of hearing to the SFIO to enable the latter to ensure that the applicant-accused do not leave the country without permission of the Court;
2. The applicant-accused will not do any business of the kind for which he has been facing trial before this Court during this period of interim bail;
3. The applicant/accused will not tamper with any evidence; and
5. The applicant/accused will share his location if so desired by the SFIO during this period.

Requisite bail bond and surety bond furnished. However, no authenticated document regarding solvency of surety to the tune of surety bond amount i.e. ₹1,00,000/- is attached with the surety bond. It is submitted by learned counsel for the applicant-accused that surety is ready to deposit ₹1,00,000/- in cash as surety bond amount and on Monday, surety will submit original FDR of the said amount and will apply for refund of cash amount of ₹1,00,000/-.

In view of request made, surety allowed to deposit ₹1,00,000/- in cash as surety bond amount and is at liberty to apply for refund of said cash amount after furnishing FDR of the same amount.

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Surety bond is accepted and attested. Personal bond of applicant-accused Surender Singh is accepted and to be attested at jail gate. Release order of accused Surender Singh be issued to the jail concerned forthwith with the directions to release him on interim bail in this case, if not required in any other case. A red ink note be given on the release warrant to the effect that the Jail Superintendent shall ensure before releasing the accused on interim bail that accused has deposited his passport in the Registry of the Hon'ble Supreme Court of India as is a condition precedent for release of the accused, in the order dated 29.10.2021 passed by the Hon'ble Supreme Court of India in SLP(Crl.) No.6847/2021.

Now, to come up on **23.12.2021**, the date already fixed, for presence of the accused.

Date of order : 30.10.2021.
Rakesh SG-I.

(Phalit Sharma)
Additional Sessions Judge,
Gurugram. [UID:HR0105].